UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF FLORIDA

CASE NO. 25-25405-CIV-ALTONAGA
(Crim. Case No. 19-20261-CR-ALTONAGA)
Eleventh Circuit No. 26-14135-D

SERGE NKORINA,
Movant-Appellant,

v.

UNITED STATES OF AMERICA,
Respondent-Appellee.

MOVANT'S SUPPLEMENT TO MOTION FOR LEAVE TO PROCEED ON APPEAL IN FORMA PAUPERIS (ECF NO. 21) WITH SUPPORTING AFFIDAVIT

Movant-Appellant Serge Nkorina, proceeding pro se, supplements his pending Motion for Leave to Proceed on Appeal In Forma Pauperis (ECF No. 21) under Federal Rule of Appellate Procedure 24(a)(1) and 28 U.S.C. § 1915(a). He submits this supplement so that the Court has a current affidavit and a complete accounting of every deposit to his inmate account, including gifts from family, and he asks the Court to grant leave to proceed on appeal without prepaying the appellate filing and docketing fees.

GROUNDS

1. Inability to pay. Movant is incarcerated at the Federal Correctional Institution in Miami. As shown in the attached affidavit and inmate account statement, his only income is institutional pay of about $43 per month and irregular gifts from family. The Bureau of Prisons statement reports total deposits of $952.86 and total withdrawals of $1,064.90 for the six months before the statement date, and an average daily balance of $40.24. He owns no real estate, vehicle, or other asset of value. He cannot prepay the appellate filing and docketing fees.

2. Inmate account statement. Under 28 U.S.C. § 1915(a)(2), a prisoner who seeks to appeal a judgment in a civil proceeding without prepaying fees must submit a certified copy of his trust fund account statement for the six-month period immediately preceding the filing of the notice of appeal. Movant attaches as Exhibit A his inmate account statement for April 8 through October 11, 2026, which covers the six months before he deposited his notice of appeal (ECF No. 20). He has asked institution staff for a certified copy and will file it as soon as he receives it.

3. Entitlement to redress and issues on appeal. Movant believes he is entitled to redress. He intends to ask the Court of Appeals for a certificate of appealability on these issues:

(a) Whether the district court violated *Clisby v. Jones*, 960 F.2d 925 (11th Cir. 1992) (en banc), and *Rhode v. United States*, 583 F.3d 1289 (11th Cir. 2009), by failing to resolve Movant's due-process claim that the Government suppressed favorable evidence under *Brady v. Maryland*, 373 U.S. 83 (1963), and *Giglio v. United States*, 405 U.S. 150 (1972), as alleged in his § 2255 motion (ECF No. 1 at 21–24); and

(b) Whether the district court abused its discretion in denying Rule 59(e) relief on the ground that Movant's argument that the court overlooked a claim in his original motion raised new arguments (ECF No. 18 at 5).

4. Good faith. The appeal is taken in good faith. It raises a non-frivolous question whether a claim pleaded in the original motion was left undecided. Movant asks the Court not to certify under 28 U.S.C. § 1915(a)(3) that the appeal is not taken in good faith.

CONCLUSION

Movant respectfully asks the Court to grant his Motion for Leave to Proceed on Appeal In Forma Pauperis (ECF No. 21), as supplemented here. A proposed order is attached.

Respectfully submitted this ____ day of _____, 2026.

_____

SERGE NKORINA
Movant-Appellant, Pro Se
Reg. No. 26432-509
Federal Correctional Institution — Miami
Inmate Mail/Parcels
P.O. Box 779800
Miami, FL 33177

AFFIDAVIT OF SERGE NKORINA IN SUPPORT OF MOTION FOR LEAVE TO APPEAL IN FORMA PAUPERIS

I swear or affirm under penalty of perjury that, because of my poverty, I cannot prepay the docket fees of my appeal or post a bond for them. I believe I am entitled to redress. I swear or affirm under penalty of perjury under United States laws that my answers in this affidavit are true and correct. 28 U.S.C. § 1746; 18 U.S.C. § 1621.

1. My issues on appeal are:

(a) Whether the district court violated *Clisby v. Jones*, 960 F.2d 925 (11th Cir. 1992) (en banc), and *Rhode v. United States*, 583 F.3d 1289 (11th Cir. 2009), by failing to resolve Movant's due-process claim that the Government suppressed favorable evidence under *Brady v. Maryland*, 373 U.S. 83 (1963), and *Giglio v. United States*, 405 U.S. 150 (1972), as alleged in his § 2255 motion (ECF No. 1 at 21–24); and

(b) Whether the district court abused its discretion in denying Rule 59(e) relief on the ground that Movant's argument that the court overlooked a claim in his original motion raised new arguments (ECF No. 18 at 5).

2. Income. My inmate account statement covers six months (April 8 to October 11, 2026). The monthly figures below are averages over that period. [SERGE TO COMPLETE]: state whether your income in the six months before April 2026 was about the same.

Employment: Federal Bureau of Prisons Inmate Performance Pay (IPP), FCI Miami — $257.81 over six months, about $43.00 per month. Expected next month: about $43.00.

Gifts: Western Union deposits from family — six deposits totaling $695.05 between April 17 and August 31, 2026, about $116.00 per month. None since August 31, 2026. Expected next month: unknown; these gifts are not regular or guaranteed.

Other: Business, self-employment, rental, interest, dividends, pensions, Social Security, disability, unemployment, public assistance, alimony, child support, or any other income: $0.

Total: About $159.00 per month (total deposits of $952.86 over six months). Expected next month: about $43.00 plus any gifts.

Spouse: [SERGE TO COMPLETE] — write "N/A — not married," or list your spouse's monthly income by source.

3. My employment history for the past two years.

Federal Bureau of Prisons, Inmate Performance Pay, FCI Miami, P.O. Box 779800, Miami, FL 33177; dates of employment: [SERGE TO COMPLETE]; gross monthly pay about $43.00. I have had no other employment.

4. My spouse's employment history for the past two years.

[SERGE TO COMPLETE] — write "N/A," or list employer, address, dates, and gross monthly pay.

5. Cash and accounts.

Cash on hand: $0. Federal Bureau of Prisons inmate trust account: $41.77 as of October 11, 2026 ([SERGE TO COMPLETE]: update to the balance shown on the certified statement). I have no bank, savings, or other financial accounts.

6. Assets.

Home: none. Other real estate: none. Motor vehicles: none. Other assets of value: none.

7. Money owed to me.

No one owes me money.

8. Dependents.

[SERGE TO COMPLETE] — write "None," or list each dependent (initials only for anyone under 18), relationship, and age.

9. Monthly expenses (averages over the six-month statement period).

Food and hygiene: Commissary purchases — $1,033.90 over six months, about $172.00 per month.

Communication: Electronic messaging (TRULINCS) — $24.00, about $4.00 per month; telephone — $5.00, under $1.00 per month.

Medical: Inmate co-pay — $2.00 over six months.

All others: Rent or mortgage, utilities, home maintenance, clothing, laundry, transportation, recreation, insurance, taxes, installment payments, alimony, support, and business expenses: $0.

Total: About $177.00 per month ($1,064.90 over six months).

10. Expected changes.

I do not expect any major change in my monthly income, expenses, assets, or liabilities in the next twelve months.

11. Payments for this case.

[SERGE TO COMPLETE] — state whether you have paid, or will pay, any attorney or any other person (including a person who helps prepare papers) for services in connection with this case, and if so, how much and to whom.

12. Why I cannot pay.

I am serving a federal sentence. My only earned income is about $43 per month in prison pay, which I spend on food, hygiene items, and messaging. I own no assets. Family gifts have been irregular and have not come since August 31, 2026. I cannot pay the appellate filing and docketing fees.

13. Personal information.

City and state of legal residence: Miami, Florida (FCI Miami). Age: [SERGE TO COMPLETE]. Years of schooling: [SERGE TO COMPLETE].

I declare under penalty of perjury that the foregoing is true and correct.

Executed on this ____ day of _____, 2026.

_____
SERGE NKORINA
Reg. No. 26432-509

EXHIBIT A

Inmate Account Statement — Serge Nkorina, Reg. No. 26432-509
Federal Bureau of Prisons, FCI Miami (April 8 – October 11, 2026)

Inmate Statement

PRINT

Alpha Code	Date/Time	Reference#	Payment#	Receipt#	Transaction Type	Transaction Amount	Encumbrance Amount	Ending Balance
MIA	10/11/2026 9:08:37 PM	TL1011			TRUL Withdrawal	($5.00)		$41.77
MIA	10/10/2026 8:04:07 PM	TL1010			TRUL Withdrawal	($5.00)		$46.77
MIA	10/8/2026 10:23:31 AM	7IPP0926			Payroll - IPP	$42.63		$51.77
MIA	10/8/2026 7:38:14 AM	34			Sales	($2.70)		$9.14
MIA	10/5/2026 7:38:45 AM	44			Sales	($2.70)		$11.84
MIA	10/1/2026 9:00:44 AM	70			Sales	($2.70)		$14.54
MIA	9/23/2026 7:42:10 AM	48			Sales	($21.65)		$17.24
MIA	9/17/2026 6:42:51 AM	8			Sales	($3.00)		$38.89
MIA	9/17/2026 6:39:18 AM	6			Sales	($79.80)		$41.89
MIA	9/11/2026 8:52:26 PM	TL0911			TRUL Withdrawal	($5.00)		$121.69
MIA	9/8/2026 9:28:01 AM	6IPP0826			Payroll - IPP	$42.63		$126.69
MIA	9/7/2026 5:15:14 PM	TFN0907			Phone Withdrawal	($5.00)		$84.06
MIA	9/3/2026 7:38:27 AM	60			Sales	($32.90)		$89.06
MIA	9/2/2026 6:32:36 AM	4			Sales	($130.00)		$121.96
MIA	8/31/2026 9:08:58 PM	33326243			Western Union	$150.00		$251.96
MIA	8/28/2026 7:41:22 AM	53			Sales	($2.70)		$101.96
MIA	8/24/2026 8:11:16 AM	48			Sales	($2.70)		$104.66
MIA	8/19/2026 4:07:48 PM	33326231			Western Union	$104.00		$107.36
MIA	8/11/2026 6:33:04 AM	2			Sales	($59.85)		$3.36
MIA	8/10/2026 9:24:48 AM	6IPP0726			Payroll - IPP	$44.66		$63.21
MIA	8/7/2026 7:17:26 AM	34			Sales	($7.80)		$18.55
MIA	8/3/2026 7:27:07 AM	28			Sales	($110.65)		$26.35
MIA	8/1/2026 8:06:43 PM	TL0801			TRUL Withdrawal	($2.00)		$137.00
MIA	8/1/2026 7:26:12 PM	TL0801			TRUL Withdrawal	($5.00)		$139.00
MIA	7/30/2026 10:07:12 PM	33326211			Western Union	$141.05		$144.00
MIA	7/16/2026 8:14:56 AM	53			Sales	($4.40)		$2.95
MIA	7/10/2026 7:16:58 AM	28			Sales	($33.45)		$7.35
MIA	7/9/2026 12:10:01 AM	6ICD0626 - 636			Debt Encumbrance - Released		$1.83	--------
MIA	7/9/2026 12:10:01 AM	6ICD0626 - 621			Debt Encumbrance - Released		$0.17	--------
MIA	7/9/2026 12:10:01 AM	6ICD0626			Inmate Co-pay	($2.00)		$40.80
MIA	7/8/2026 9:20:50 AM	6IPP0626			Payroll - IPP	$42.63		$42.80
MIA	7/8/2026 9:20:50 AM	6ICD0626 - 636			Debt Encumbrance		($1.83)	--------
MIA	6/30/2026 1:07:44 PM	6ICD0626 - 621			Debt Encumbrance		($0.17)	--------
MIA	6/11/2026 6:47:05 AM	13			Sales	($141.50)		$0.17
MIA	6/10/2026 3:22:00 PM	6IPP0526			Payroll - IPP	$40.60		$141.67
MIA	6/5/2026 2:02:37 PM	TL0605			TRUL Withdrawal	($2.00)		$101.07
MIA	6/2/2026 8:16:41 AM	50			Sales	($2.70)		$103.07
MIA	6/2/2026 7:13:33 AM	33326153			Western Union	$100.00		$105.77
MIA	5/20/2026 7:19:07 AM	37			Sales	($39.95)		$5.77

MIA	5/11/2026 7:33:18 AM	6IPP0426	Payroll - IPP	$44.66	$45.72
MIA	5/6/2026 7:39:11 AM	35	Sales	($101.15)	$1.06
MIA	5/5/2026 7:14:27 AM	33326125	Western Union	$100.00	$102.21
MIA	4/29/2026 7:40:41 AM	32	Sales	($2.75)	$2.21
MIA	4/24/2026 7:53:54 AM	39	Sales	($2.70)	$4.96
MIA	4/22/2026 7:31:12 AM	37	Sales	($94.30)	$7.66
MIA	4/17/2026 4:07:40 PM	33326107	Western Union	$100.00	$101.96
MIA	4/16/2026 6:44:55 AM	9	Sales	($151.85)	$1.96
MIA	4/15/2026 9:08:34 PM	33326105	Western Union	$100.00	$153.81
MIA	4/9/2026 8:17:33 AM	29	Sales	($2.70)	$53.81
MIA	4/8/2026 3:16:04 PM	6IPP0326	Payroll - IPP	$44.66	$56.51

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Total Transactions: 64

Totals: **($0.79)** **$0.00**

Current Balances

Alpha Code	Available Balance	Pre-Release Balance	Debt Encumbrance	SPO Encumbrance	Other Encumbrance	Outstanding Instruments	Administrative Holds	Account Balance
MIA	$41.77	$0.00	$0.00	$0.00	$0.00	$0.00	$0.00	$41.77
Totals:	**$41.77**	**$0.00**	**$0.00**	**$0.00**	**$0.00**	**$0.00**	**$0.00**	**$41.77**

Other Balances

National 6 Months Deposits	National 6 Months Withdrawals	National 6 Months Avg Daily Balance	Local Max Balance - Prev 30 Days	Average Balance - Prev 30 Days	Commissary Restriction Start Date	Commissary Restriction End Date
$952.86	$1,064.90	$40.24	$121.69	$28.42	N/A	N/A

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF FLORIDA

CASE NO. 25-25405-CIV-ALTONAGA
(Crim. Case No. 19-20261-CR-ALTONAGA)
Eleventh Circuit No. 26-14135-D

SERGE NKORINA,
Movant-Appellant,

v.

UNITED STATES OF AMERICA,
Respondent-Appellee.

[PROPOSED] ORDER GRANTING LEAVE TO PROCEED ON APPEAL IN FORMA PAUPERIS

THIS CAUSE came before the Court on Movant-Appellant Serge Nkorina's Motion for Leave to Proceed on Appeal In Forma Pauperis (ECF No. 21), as supplemented. The Court has reviewed the motion, the supporting affidavit, and the inmate account statement, and finds that Movant is unable to prepay the fees for his appeal and that the appeal is taken in good faith. Accordingly, it is

ORDERED AND ADJUDGED that the Motion (ECF No. 21) is GRANTED. Movant may proceed on appeal in Eleventh Circuit No. 26-14135-D without prepayment of the appellate filing and docketing fees.

DONE AND ORDERED in Miami, Florida, this ____ day of _____, 202__.

_____
CECILIA M. ALTONAGA
CHIEF UNITED STATES DISTRICT JUDGE

cc: Movant-Appellant, pro se
Counsel of record

CERTIFICATE OF SERVICE AND DECLARATION OF INMATE FILING

I certify that I placed the foregoing Supplement to Motion for Leave to Proceed on Appeal In Forma Pauperis, with Affidavit, Exhibit A, and Proposed Order, in the legal mail system at the Federal Correctional Institution — Miami, first-class postage prepaid, addressed to the Clerk of Court, United States District Court for the Southern District of Florida, 400 North Miami Avenue, Miami, Florida 33128. Counsel of record for the United States will be served through the Court's CM/ECF system when the document is docketed.

I declare under penalty of perjury under 28 U.S.C. § 1746 that the foregoing is true and correct, and that I deposited this document in the institution's internal mail system on _____, 2026, with first-class postage prepaid.

_____
SERGE NKORINA
Reg. No. 26432-509